



Bill Number: S.B. 1128

Gowan Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Adds, to the membership of the Study Committee on Scrap Metal Theft, one person who has experience or expertise that is relevant to scrap metal theft, public safety or regulated industries and is appointed by the Governor.

GOWAN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1128
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Study committee on scrap metal theft; membership
3 duties; report; delayed repeal

4 A. The study committee on scrap metal theft is established
5 consisting of the following members:

6 1. Two persons who are currently certified as peace officers
7 pursuant to title 41, chapter 12, article 8, Arizona Revised Statutes, and
8 who have experience in scrap metal theft in this state. The president of
9 the senate and the speaker of the house of representatives shall each
10 appoint one member.

11 2. Two persons who are currently registered as scrap metal dealers
12 pursuant to title 44, chapter 11, article 3.1, Arizona Revised Statutes.
13 The president of the senate and the speaker of the house of
14 representatives shall each appoint one member.

15 3. One member of the public who has been impacted by scrap metal
16 theft and one person who represents the telecommunications industry. The
17 president of the senate and the speaker of the house of representatives
18 shall each appoint one member.

19 4. One person from the Maricopa county attorney's office who can
20 provide information on scrap metal theft prosecutions and who is appointed
21 by the Maricopa county attorney.

22 [5. One person who has experience or expertise that is relevant to
23 scrap metal theft, public safety or regulated industries and who is
24 appointed by the governor.]

25 B. The study committee shall:

26 1. Examine whether title 44, chapter 11, article 3.1, Arizona
27 Revised Statutes, deters crime.

28 2. Evaluate the scrap metal industry's costs spent for complying
29 with title 44, chapter 11, article 3.1, Arizona Revised Statutes.

1 3. Review title 44, chapter 11, article 3.1, Arizona Revised
2 Statutes, and other related statutes to determine whether the existing
3 civil penalties and criminal fines adequately regulate the scrap metal
4 industry.

5 4. On or before December 1, 2026, submit a report of its findings
6 and recommendations to the governor, the president of the senate and the
7 speaker of the house of representatives and provide a copy of this report
8 to the secretary of the state.

9 C. This section is repealed from and after December 31, 2026.

10 Enroll and engross to conform

11 Amend title to conform

DAVID GOWAN

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